

2:00 PM

LINE 6

24-CIV-03737 JESSICA LORENZO VS ANX HOLDINGS LLC

JESSICA LORENZO
ANX HOLDINGS LLC

DOUGLAS HAN

MOTION FOR ATTORNEY FEES

TENTATIVE RULING:

See tentative ruling on motion for final approval.

2:00 PM

LINE 7

24-CIV-04622

MARTIN AERON ARIAS VS. BERG SENIOR SERVICES, LLC

MARTIN AERON ARIAS
BERG SENIOR SERVICES, LLC

HELGA HAKIMI
ANDREW R SHALAUTA

MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT

TENTATIVE RULING:

The court rules on plaintiff's unopposed motion for final approval of class action settlement and award of attorneys' fees, service award and costs as follows:

First, the court notes that plaintiff failed to comply with paragraph 11 of Case Management Order No. 1 filed July 30, 2024, which requires a binder with courtesy copies. This failure increases the court's workload.

The Court Grants Approval of the Settlement

On February 17, 2026, the court granted preliminary approval to this class and PAGA (Private Attorney General Act) settlement. The action alleges wage and hour violations.

According to the preliminary approval motion, it was estimated that there are approximately 450 class members with a proposed settlement amount of is \$1,100,000.00. The settlement will provide a payment of \$60,000 to the California Labor and Workforce Development Agency (LDWA) (i.e., 75% of the \$80,000 amount allocated to resolve the PAGA allegations). The remaining \$20,000 shall be distributed amongst Aggrieved Employees. The LDWA has not objected to the settlement. The average payment to participating class members is \$1,437.90, and the highest is \$3,374.84. (Declaration of Kevin Lee ¶¶ 6-8.)

In ruling on settlements involving class and PAGA claims, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 [“trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.”]; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 [“ ‘The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement.’ “].)

In reviewing the evidence presented and conducting its independent review, the court finds that all the conditions for final approval have been met. The court gives final approval to the
